

विड दस्तावेज़ / Bid Document

विड विवरण/Bid Details	
विड बंद होने की तारीख/समय /Bid End Date/Time	21-07-2026 15:00:00
विड खुलने की तारीख/समय /Bid Opening Date/Time	21-07-2026 15:30:00
विड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Indian Oil Corporation Limited
संगठन का नाम/Organisation Name	Marketing Division
कार्यालय का नाम/Office Name	Lpg Bottling Plant North Guwahati
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :buycon8.iocl.as@gembuyer.in Buyer Email id: buyer1.iocl.bihar@gembuyer.in
वस्तु श्रेणी /Item Category	Testing Service for On-Board /Commissioned Equipment/ Instrument related to Plant - NDT, Hydrostatic Test of Pressure Vessels as per SMPV U Rules 2016; Statutory testing and painting of 2x 660 MT Horton Sphere as per Rule 19 of SMPV U Rules, 2016; CO..
अनुबंध अवधि /Contract Period	4 Month(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	13 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	7 Year (s)
इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required	Yes
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	2119753
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) / ePBG Percentage (%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) / Duration of ePBG required (Months).	12

(a) ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

GM (plant)

LPG BOTTLING PLANT NORTH GUWAHATI, INDIAN OIL CORPORATION LIMITED, Marketing Division, Ministry of Petroleum and Natural Gas

(K H Kom)

UIN Number NCTGC2415P

बोली विभाजन लागू नहीं किया गया/Bid splitting not applied.

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.
7. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and

for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

8. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -

1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Buyer to upload detailed list of equipments/samples, tests to be conducted and technical specifications of equipment/sample to be tested:[1783416703.pdf](#)

Payment Terms:[1783416741.pdf](#)

Buyer to provide price bifurcation format in which Service Provider will submit the breakup of the lumpsum cost quoted.:[1783416876.pdf](#)

Testing Service For On-Board /Commissioned Equipment/ Instrument Related To Plant - NDT, Hydrostatic Test Of Pressure Vessels As Per SMPV U Rules 2016; Statutory Testing And Painting Of 2x 660 MT Horton Sphere As Per Rule 19 Of SMPV U Rules, 2016; CO.. (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Type of tests required	NDT , Hydrostatic Test of Pressure Vessels as per SMPV U Rules 2016
Details of tests required	Statutory testing and painting of 2x 660 MT Horton Sphere as per Rule 19 of SMPV U Rules, 2016
Eligible Testing Lab	COMPETENT PERSON for Tests, Examination, and Inspection and Certification under SMPV UNFIRED Rules, 2016 and or CCOE Nagpur approved party
Testing location	Premise (onsite)
Time within which samples/instruments need to be tested once provided by buyer	Depending on the instrument, schedule to be provided in Scope of Work
Reports required	Test Report , Statutory certification under 19 of SMPV U Rules 1981. Online certification is required at PESO site
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

No

इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	100%

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	Chandan Bharti	781031,Indane bottling plant, North Guwahati	1	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

There are three parts of this tender document given in buyer added ATC document:

Part A : TENDER DOCUMENT CONSISTING OF PRE-QUALIFICATION CRITERIA, TENDER EVALUATION CRITERIA, PAYMENT TERMS, SCOPE OF WORKS, ETC.

Part B : GENERAL TERMS,COMMERCIAL CONDITIONS AND DECLARATIONS

Part C : GENERAL CONDITIONS OF CONTRACT (GCC)

Bidders are requested to carefully read the documents before quoting.

Earnest Money Deposit

There shall be no requirement of paying EMD against this tender. Bidder shall be required to mandatorily submit the bid security declaration in lieu of EMD as per the standard format of the Corporation provided in the tender document Part B Annexure K.

Bid security declaration shall also be applicable on bidders who are exempted from payment of EMD (as per PPP, startups, CPSEs and JVs).

The bid shall be liable for rejection if Bid security declaration in lieu of EMD is not uploaded in gem portal with the bid.

Security deposit

5% of the Total Contract Value.

For above the Total Contract Value shall mean the totality of such remuneration exclusive of Goods and Service Tax.

While initially the SD amount shall be 5% of the Work Order value (exclusive of GST), once the work is executed, the total Security Deposit will be on the value of the work actually executed and not on the value of the work order.

SD submission, release, exemption, forfeiture etc. modalities shall be as per Clause 7 of Section 2 of Part-B.

ISB shall also be accepted against SD as per Clause 9 of Section 2 of Part-B.

Job completion time

The total job completion time shall be 120 days from 10th day after issuance of PO/Work order or date of actual site hand over, whichever is earlier.

However, IOCL reserves the right to terminate the contract with giving prior notice of one month's time to the contractor during the tenure of contract.

To end the Contract prematurely or on account of non-extension of Contract, Cancellation Flow modalities of GeM Portal shall be utilized

Purchase preference

Purchase preference as per PPP-MSE order 2012 shall be granted as per Clause 20, 21 and 23 of Section 2 of Part-B.

PPP-MII is not applicable for this tender.

Pre-Qualification criteria

There shall be no requirement of turnover and prior experience criteria for Start-up (s) and MSE (s) as per Govt policies.

Startups intending to seek relaxation of prior experience and prior turnover criteria shall submit Certificate of recognition as Startup from department of Industrial Policy & Promotion, Ministry of Commerce & Industry, Govt of India valid on tender closing date.

MSE (s) intending to seek relaxation of prior experience and prior turnover criteria shall submit Udyam Registration Certificate with Category of the Bidder mentioned from Ministry of Micro, Small and Medium Enterprises valid on tender closing date along with Confirmation of applicability of MSE Order as per format given in Annexure L in part B of tender document.

A	SIMILAR WORK EXPERIENCE:
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1.	Work completed by the bidder, as main contractor, or as sub-contractor, during last seven years ending last day of month previous to the original date of bid submission. The value of completed work for evaluation shall be considered as under: Three similar completed works each costing not less than the amount equal to - Rs. 6.36 Lakh including Taxes each OR Two similar completed works each costing not less than the amount equal to - Rs. 8.48 Lakh each including Taxes each OR One similar completed work costing not less than the amount equal to - Rs. 10.60 Lakh including Taxes DEFINITION OF SIMILAR WORK: Similar work shall mean work successfully carried out Statutory testing of LPG/ Propane pressure vessels in petroleum industry. Pressure vessels means Horton Sphere / Bullets / Mounded Bullets.
B	TURNOVER CRITERIA:
	The turnover of the Bidder during any of the preceding three financial years (FY 2023-24 OR FY 2024-25 OR FY 2025-26) should be at least 60% of the estimated value of the work with GST under consideration i.e. Rs. 12.72 Lakh Turnover for this purpose should be as per audited financial statements.
	Impact of GST: The estimated cost as indicated above shall be inclusive of Goods and Service Tax (GST). The value of completed job as submitted by the bidders shall be compared with values as prescribed above. There shall be no deduction against Taxes.
	Notwithstanding any other condition/ provision in the tender documents, bidders are required to submit complete documents pertaining to PQC along with their offer. IOC reserves the right to complete the evaluation based on the details furnished by the bidders, with or without seeking any additional supporting documents/clarifications.

Scope of works:

The tenderer should have recognition as "COMPETENT PERSON" for Tests, Examination, and Inspection & Certification under SMPV (UNFIRED) Rules, 2016 and / or CCOE Nagpur approved party for the subject work. The person carrying out the inspection should have 'competent person certificate' issued by CCOE Nagpur and copy of the valid authorization certificate from CCOE Nagpur certifying the person as 'competent person' under Rule-19 of SMPV Rules should be submitted before execution of job.

The statutory tests given in the tender schedule are not exhaustive; the contractor will also conduct any test if required as per the relevant code.

The work is to be carried out inside the Plant premises, which is in operational condition. All the safety regulations will have to be observed and there may be constraints compared to normal working. Hence Tenderer is advised to visit the location and ascertain the conditions including leads/lifts involved, safety precautions etc. prior to quoting for the tender.

All the safety provision as mentioned in OISD-192 for work at height is to be followed and the safety harness used for the job should be tested & certified by Factory Dept.

For further details on Scope of works, please read part A of buyer added ATC document.

Schedule of rates:

SN	Item Description	Qty	Unit	Rate	Amount
1	Decommissioning/Degassing of Horton Sphere :- with IOCL supplied water after making necessary connections/ isolations as directed on site. The water used for degassing should be disposed off safely in the drainage and the sludge if any coming along with water should be carefully removed and disposed / kept in safe place as directed at site. The sludge shall be handled wet and should be buried if necessary as per directions of LIC / Site Engineer for avoiding ignition of pyrophoric iron compounds, if any as required, A sample of all sludge collected should be handed over to the LIC / Site Engineer.	2	EA	12259.52	24519.04
2	Disconnecting the inlet, outlet of the LPG liquid and vapour line, SRV, Manhole, drain line, globe valves, ROV, HLA, Servo gauges and other fitting and disconnections of electrical cables wherever required to enable easy approach to all the areas inside the entire vessels. Any damage during de-box up/ box up, the same shall be made good by contractor at his own cost	2	EA	12259.52	24519.04
3	Providing MS tubular ladder/scaffolding & flameproof lighting arrangement inside the vessels suitable for cleaning of inner surface and suitable for carrying out all inspections as mandated under SMP V (U) Rules and all allied jobs as directed. Contractor has to arrange all equipments and consumables required for carrying out the job and Suitable arrangement by way of providing blower / exhaust fan and breathing apparatus, safety belts for working personnel is to be made by contractor as required.	2	EA	138941.15	277882.31

4	Thorough cleaning of the inner surface with water jet and clearing the sludge / rust materials followed by thorough cleaning of inner surface to remove the scales, oil and dust by wire brushes and an other suitable means to expose the metal surfaces and thorough buffing of weld joints. The contractor has to provide all equipments and consumables items for carrying out the job. Localised grinding of the welds to be done if required as directed by IOC Site incharge/ Third Party inspecting Authority	2	EA	24519.03	49038.06
5	External Surface preparation of vessels, platform, support, pipeline, ladder etc for painting to be done as per SSPC PC2 to be executed by stainless steel wire brush and emery paper HS support, pipeline, ladder etc for painting to be done as per SSPC PC2 to be executed by stainless steel wire brush and emery paper	2,700.00	SQM	122.59	330980.38
6	Painting of Vessels:- Supply of paint and Painting of external surface of vessels including security air and hydrant water line of MVWSS water sprinkler system is to be done including the Monogram, letter writing, flame etc complete as per IOCL scheme. Primer will be one coat of Self priming HB epoxy mastic coating (DFT: 100-125μ), Intermediate coat of Polyamide cured HB Epoxy MIO (DFT: 100-125μ), Finish coat of Two pack acrylic polyurethane (PU)(DFT: 40-50μ). Painting is to be done on all LPG pipe lines up to the Manifold including the pipeline inside the Tank farm area (Inside curb wall) with same paint classification as mentioned above	2	EA	187161.93	374323.86
7	Supply of paints and painting of exposed surface of all structural including railing, steps, stairs, body valves, safety valves, etc of vessels inside the tankfarm area(Inside curb wall) including structures around LPG Manifold. Primer will be one coat of Self priming HB epoxy mastic coating (DFT: 100-125μ), Intermediate coat of Polyamide cured HB Epoxy MIO (DFT: 100-125μ), Finish coat of Two pack acrylic polyurethane (PU)(DFT: 40-50μ). Writing with paint on prescribed display boards inside the Tank farm area as directed by Site engineer.	2	EA	16346.02	32692.04

8	Visual Examination :- 100% Visual Examination on internal and external surfaces for observation of any surface defects, weld defects, corrosion, pitting or other wise physical/ material defects etc	2	EA	8172.98	16345.97
9	Ultrasonic thickness measurement on all Crown & Petal Plates, LPG pipelines and nozzles as per ASTM-A 578, ASTM-E-797 OR any other applicable codes and meeting all requirements of PESO as per the instructions of IOCI Site Engineer.	2	EA	16346.02	32692.04
10	Ultrasonic Thickness Gauging (UTG) as per ASTM E-797 around and on each nozzle -neck at four quadrants including LPG Pipelines up to 1st flange	2	EA	4086.49	8172.98
11	UFD (Ultrasonic flaw detection) to check any internal defects of vessels weld joints on a) 100% "T"joints from inside b) Middle circumferential seam, bottom & Crown weld, internal 100%, c) nozzle weld - neck to shell internal 100 % as per ASTM E 577, Sec V Art. 4,5,23 Sec VIII div 1 & 2 not less than 25% covering and as per applicable codes and meeting all requirements of PESO	2	EA	44951.56	89903.11
12	Wet fluorescent magnetic particle test of welds joints of Horton Sphere, including nozzle joints to check any surface/surface defects or linear type of indications over the welds covering HAZ on 100% circumferential and longitudinal weld joints from inside and on outside portion exposed encompassing the nozzle, manholes, RF pads to shell wherever applicable (externally exposed weld) as per ASTM-E-709 and meeting all requirements of PESO.	2	EA	44951.55	89903.10
13	Hardness Testing to check hardness value of welds, parent metals and HAZ on selected spots on welds,HAZ and parent metal in each accessible area as per ASTM-110 and meeting all requirements of PESO	2	EA	32692.02	65384.04
14	Dry- Penetrant Test to check any surface defects over welds. Covering HAZ (Heat affected zone) of all nozzles, manholes etc. For defects like porosity, cracks etc as per ASTM E-165-80 and meeting all requirements of PESO	2	EA	8172.98	16345.97

15	Radiography test for weld joints at selected locations as problem defect / flaws observed during other tests subject to a maximum of 10% of total weld length as per ASTM-E 94 or applicable codes and meeting all requirements of PESO	2	EA	10216.26	20432.53
16	Hydrotest and Stretch Test - Pressure testing of the vessels and LPG pipe lines upto first isolation valves after completion of all NDT using the supplied water for specified hydrostatic test pressure as per design/ relevant codes and draining the water after completion of the testing as directed by Site In charge/Third Party Inspecting Agency. Differential Settlement of the Vessels to be observed using relevant apparatus and details to be recorded as per instruction of IOC site engineers.	2	EA	32692.05	65384.09
17	Commissioning/ purging- Dismantling the blind flanges, pipe joints of LPG Horton Sphere as required and through cleaning of the joints, fixing new supplied gaskets, studs and nuts and fixing back all connected line valves including excess flow check valves, safety valves after testing and other instruments like servo gauge, HLA etc. fitted to the vessel and complete all such jobs in all respects to make the LPG Horton sphere ready for commissioning after completion of inspection and testing of LPG storage vessels duly certified by CCE approved parties. Carry out leak test of all gauge/fittings. All tools, trackles and consumables required for the job is to be provided by the contractor. After commissioning of LPG storage vessels the work site is to be cleared of all debris to enable free and easy movement of operating personnel as per the instruction at site	2	EA	24519.03	49038.06
18	Supply and installation of all New Gasket, studs, bolts for Horton sphere of approved quality with Third Party test certificate	2	EA	65384.08	130768.17

19	Surveillance by TPIA submission of inspection Dossier (4 Numbers) Certification under Rule 19 by recognized Third Party Inspection Agency (T. P. I. A) submission of inspection Dossier sketches / drawings with statutory certification under 19 of SMPV (U) Rules 1981. Online certification is required at PESO site	2	EA	40865.06	81730.11
20	Function test of EFCV, ROV, HLA and submission of report	4	EA	4086.51	16346.04
TOTAL WITHOUT GST					1796400.93
GST @ 18%					323352.17
GRAND TOTAL INCLUDING GST					2119753.10

Note: Comparison of test results with previous test results (provided by IOCL) and retiring thickness calculation shall be in the scope of works of contractor.

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export

experience.

9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms

of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---